

26STCV04263 26STCV04263

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV04263

YAN

WANG vs ALFREDO GONZALEZ, et al.

August

18, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS ALFREDO GONZALEZ AND AG & B CONSTRUCTION INC.'S DEMURRER TO
PLAINTIFF'S FIRST AMENDED COMPLAINT.

MOTION THEREOF TO STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT.

RULING:

The Court sustains the
Demurrer and grants the Motion to Strike, with leave to amend.

Plaintiff may serve and
file a Second Amended Complaint (SAC), on or before October 2, 2026, after
opportunities to pursue pending discovery.

Defendants to give notice.

I.

BACKGROUND

On February 9, 2026, YAN
WANG (Plaintiff) filed a Complaint against ALFREDO GONZALEZ, etc., et al. (Defendants).

On April 22, 2026,
Plaintiff filed a First Amended Complaint (FAC), listing Causes of Action for:

1.

STATUTORY DISGORGEMENT OF COMPENSATION (B&P CODE § 7031(b))

2.

STATUTORY FRAUD (B&P CODE § 7044 / 7116)

3.

NEGLIGENT SUPERVISION (B&P CODE § 7068.1)

4.

BREACH OF WARRANTY OF WORKMANLIKE PERFORMANCE

5.

ACTION ON CONTRACTOR'S LICENSE BOND (BPC § 7071.5)

6.

BREACH OF CONTRACT

7.

VIOLATION OF DISCLOSURE DUTY (CIVIL CODE § 1102)

8.

BREACH OF FIDUCIARY DUTY

9.

PROFESSIONAL NEGLIGENCE

10.

NEIGLIGENT [sic] MISREPRESENTATION

11.

CONSTRUCTIVE FRAUD

12.

INTENTIONAL DECEIT AND CONCEALMENT (CIVIL CODE § 1710)

13.

VIOLATION OF B&P CODE § 17200 (UNFAIR BUSINESS PRACTICES).

Plaintiff alleges: "This

action arises from a residential real estate transaction characterized by the systemic failure of a dual agent to protect the buyer against the fraudulent schemes of a 'Contractor Seller.' " (FAC, ¶ 1.) Reportedly, Plaintiff, as buyer of 11127 Lambert Avenue, El Monte, CA, relied on the broker agents of the seller, ALFREDO GONZALEZ as trustee of Gonzalez Alfredo Living Trust, regarding contractor licensing, property condition, new renovating, and code compliance. However, the property had the following undisclosed issues:

"(1)

Crawlspace: Gluing new 2x4s and plywood directly over active structural rot to hide decay from the Plaintiff.

(2)

Plumbing/Bathrooms: Installing raw, non-waterproofed HardieBacker as a finished wall, ensuring immediate water intrusion and systemic rot.

(3)

Foundation Failure: The pervasive water intrusion resulting from these non code-compliant "renovations" has necessitated a full perimeter foundation replacement estimated at \$130,000."

(FAC, ¶ 40.)

On July 23, 2026, Defendants ALFREDO GONZALEZ and AG&B CONSTRUCTION INC. (Moving Defendants) filed the Demurrer and Motion to Strike, on grounds including that claim elements are insufficiently alleged and barred by the one-year Statute of Limitations, and unsupported statutory remedies should be stricken.

Plaintiff opposes, based on arguments such as that the allegations are sufficient, and requests leave to amend as to some aspects.

II.

LEGAL STANDARD

Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.) A complaint does not necessarily need to be a model of pleading but needs sufficient factual allegations. (E.g., State v. The Superior Court (2001) 87 Cal.App.4th 1409, 1411.) “ ‘Even as against a special demurrer, a plaintiff is required only to “set forth in his complaint the essential facts of his case with reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent of his cause of action.” ’ ” (Elder v. Pac. Bell Tel. Co. (2012) 205 Cal.App.4th 841, 858.) Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged. (E.g., Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119 [“A demurrer must dispose of an entire cause of action to be sustained.”]; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.) “[I]t is possible that specific allegations will render a complaint defective when the general allegations, standing alone, might have been sufficient.” (Ferrick v. Santa Clara Univ. (2014) 231 Cal.App.4th 1337, 1352.) “[T]o prevail on a demurrer based on the statute of limitations, a defendant must establish the entire cause of action is untimely.” (Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP (2011) 195 Cal.App.4th 265, 274.)

The grounds for a motion

to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Ibid., § 437.) “[W]hen a substantive defect is clear from the face of a complaint, such as a violation of the applicable statute of limitations or a purported claim of right which is legally invalid, a defendant may attack that portion of the cause of action by filing a motion to strike.” (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682-1683.) Pled conclusory language is not subject to a motion to strike where the full context of the complaint contains sufficient facts alleged to support the conclusions. (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6–7.)

Unsupported

attorneys’ fees allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (Camenisch v. Superior Court (1996) 44 Cal.App.4th 1689, 1699.) “There is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings.” (Yassin v. Solis (2010) 184 Cal.App.4th 524, 533. Accord, Snatchko v. Westfield LLC (2010) 187 Cal.App.4th 469, 497 [error to strike attorney fees sought under Code of Civil Procedure section 1021.5, because there is no pleading requirement involved]; Chinn v. KMR Property Management (2008) 166 Cal.App.4th 175, 194 [“We agree that the complaint need not include a prayer for attorney fees, and that due process is satisfied by notice to the opposing party of the motion for attorney fees.”], disapproved on other grounds by DeSaulles v. Cmty. Hosp. of Monterey Peninsula (2016) 62 Cal.4th 1140, 1144.) Courts may strike prayers for attorney fees if a party demonstrated no potential basis for their recovery. (Agricultural Ins. Co. v. Superior Court (1999) 70 Cal.App.4th 385, 404.)

Complainants need only

allege a prima facie violation of a statute, and need not address the exceptions. (See Ribas v. Clark (1985) 38 Cal.3d 355, 362 (“because the complaint alleges a prima facie violation of section 631, subdivision (a), it is defendant’s burden on this demurrer to show on the face of the pleadings that she comes within the exception of subdivision (b) of the statute.”).)

Courts may consider

matters that are proper for judicial notice. (ABF Capital Corp. v. Berglass (2005) 130 Cal.App.4th 825, 834.) Also, courts may take judicial notice of admissions set forth

in oppositions. (Rodas v. Spiegel

(2001) 87 Cal.App.4th 513, 518.) “[J]udicial

notice of matters upon demurrer will be dispositive only in those instances

where there is not or cannot be a factual dispute concerning that which is

sought to be judicially noticed.” (Unruh-Haxton

v. Regents of Univ. of Cal. (2008) 162 Cal.App.4th 343, 365.) But judicial

notice requests may be denied based upon lack of relevance. (Kashian v. Harriman (2002) 98

Cal.App.4th 892, 901, fn.3; Ragland v.

U.S. Bank National Assn. (2012) 209 Cal.App.4th 182, 194; Barratt Amer., Inc. v. City of San Diego

(2004) 117 Cal.App.4th 809, 812, fn. 2.)

III.

ANALYSIS

Moving Defendants

generally assert the following bases for the Demurrer and Motion:

1.

The First Cause of Action fails because Business

and Professions Code section 7031(b) permits recovery only of compensation paid

to an unlicensed contractor, whereas the FAC pleads real property purchasing

and a licensed contractor. Also, the one-year Statute of Limitations expired,

as shown by the Request for Judicial Notice.

2.

The Second Cause of Action fails because

sections 7109, 7110, and 7116 create no private right of action, and section

7116 applies to fraudulent acts by a licensee acting as contractor, and fraud

is not pled with particularity. Additionally, this Cause of Action is barred by

the statute of repose, Code of Civil Procedure § 337.15.

3.

The Third Cause of Action fails since

section 7068.1 addresses compliance with the Contractors State License Law and

affords no private right of action.

4.

The Fourth Cause of Action fails since implied

warranty of workmanlike performance arises from construction services, not a residential purchase. Further, this Claim is barred by the statute of repose, Code of Civil Procedure § 337.15.

5. The

Sixth Cause of Action fails because the “Supplemental Repair Agreement” is barred by the statute of frauds (Civ. Code § 1624), was made by an agent without authority, is uncertain, and damages fall outside the operative contract's scope.

6. The

Seventh Cause of Action fails since Plaintiff pleads imputed knowledge through Plaintiff's dual agent, thereby defeating Plaintiff's alleged reliance and causation.

7. The

Twelfth Cause of Action fails in that Fraud is not pled with requisite particularity, and scienter of Defendant Gonzalez is not alleged.

8.

Allegations against Defendant A G & B

CONSTRUCTION INC. include no facts connecting it to the property, renovation, or contract, and the alter-ego allegations are conclusory and speculative.

9.

Plaintiff has not opposed striking Prayer number 6 insofar as it rests on the attorney's-fee provision.

10.

Plaintiff admits that section 7031(b), to be stricken, does not authorize recovery of the real estate purchase price.

11.

Moving Defendants seek to strike, as conclusions, paragraph 121 (“Defendants acted with fraud, malice, and oppression”) and the corresponding Prayer number 4, but the other punitive damages allegations are not attacked.

Regarding the Demurrer, Plaintiff

advocates overruling, or leave to amend specified allegations, considering that

discovery is underway, including as to, “the timing and performer of the renovation work, the entity and license under which it was performed, and the Seller’s knowledge....” (Demurrer Opposition, 16:26-17:1.) And Plaintiff counterargues specific issues including these:

1.

The Statute of Limitations is not revealed, where renovation work continued through 2024 and repair work occurred during the March 2025, notwithstanding Moving Defendants’ Request for Judicial Notice that is not to the contrary.

2.

Questions of fact are unresolvable in a demurrer proceeding, including as to fraud, concealment, reliance, and contract scope.

3.

Breach of Contract and Warranty are at least partly alleged well enough, based on a written repair contract.

4.

Deceit and Concealment are sufficiently pled, based on Defendant Gonzalez’s specified acts.

5.

Regarding Disgorgement, when compensated renovation work occurred cannot be resolved, or leave to amend should be allowed.

6.

Statutory fraud and negligent-supervision need not depend on statutory private rights of action.

As for the Motion,

Plaintiff makes some concessions, but insists that punitive damages allegations based on fraud are sufficiently pled.

Complainants have the

burden to demonstrate how complaints can be amended, in order to obtain leave to amend, and it is not up to the judge to figure it out, and that showing

may be made in the first instance to the appellate court. (Oglio Entertainment Group, Inc. v. Hartford Cas. Ins. Co. (2011) 200 Cal.App.4th 573, 585.)

“[A] vague suggestion that additional facts might be uncovered through discovery is insufficient to justify allowing plaintiffs further leave to amend their complaint.” (AREI II Cases (2013) 216 Cal.App.4th 1004, 1020.) (Underscoring added.)

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, “leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.”... It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader’s action.” (Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174-1175.)

Here, the Court notes that Plaintiff has indicated (1) several specific offers of leave to amend, (2) some concessions, and (3) supportive discovery already underway. (See, e.g., Demurrer-Opposition, 6:5-12, 10:1-18, 11:11-12, 12:1-2, 16:20-17:2; and, Motion-Opposition, 2:16-22, 5:12-27, 6:1-18.)

Therefore, the Court allows leave to amend, for efficient narrowing of the issues raised.

IV.

CONCLUSION

The Court sustains the Demurrer, and grants the Motion, with leave to amend.

Finally, the Court grants Defendants’ Request for Judicial Notice to the limited extent of its scope, which does not encompass the most recent dates of repair alleged in the FAC.